

"We are certainly not helpless in the tenure issue"

Sports Minister M.S. Gill replied to INDIA TODAY's questions about the tenure controversy over e-mail.

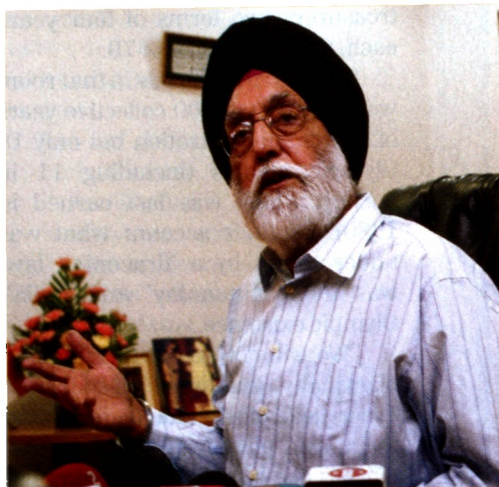
Q. The timing of the tenure issue is contentious. Was it to score points against Kalra? Or did the court force your hand?

A. In 2009, the Delhi High Court in the matter of Indian Hockey declared that the guidelines for recognition of NSFs are valid, binding, enforceable, and the tenure clause is not in violation of the IOC Charter.

Another PIL, before the Chief Justice Bench of the Court, pursuing the tenure clause regulation, directed the presentation of the ministry's files on May 5, and an affidavit of action taken. We examined the matter and the IOC regulations on tenure and issued the order dated May 1. We obeyed the high court, as we must, those seeking relief should go to them. I work closely with everyone in the Commonwealth Games.

Q. Aren't you worried about an Olympic suspension for India?

A. People should understand that Randhir Singh is the independent IOC observer from India. He is also Secretary General, IOA, for more than 23 years. He has a clear conflict of interest in promoting the desire for unlimited tenure for NSF/IOA office bearers. He went to the IOC without any consultation with the ministry officials, which in fairness he is



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bound to do, and obtained a letter from the Director, PRO. He has now sent the letter to us, and we are taking it up with the IOC at the highest level. An officer will be sent to Lausanne for detailed discussions.

Q. What happens if your guidelines are not adhered to?

A. The future is not ours to see, but I can assure you that we are not helpless.

Q. There is a consensus against politicians running sports. Should bureaucrats be involved?

A. I am presently concerned with only the regulations issued on September 20, 1975. In the April 22 Rajya Sabha debate all sections of the House wanted me to bring forward a comprehensive law, for the governance of sports. Such (as there is) a law for the US, (Ted Stevens

Olympic and Amateur Sports Act), was made in 1978, and amended in 1998. There are similar laws in France, Germany, Australia and Malaysia which was made, just before the Commonwealth Games in that country. These are thoughts for the future.

Q. Given its terrible track record, surely the Sports Authority of India (SAI), under your ministry's control needs to be dismantled?

A. SAI certainly has flaws. I have tried to make improvements, and will continue to strive for a more efficient, productive organisation.

Q. Is your own position and tenure as sports minister not weaker with this controversy?

A. There are individuals in sports federations from a number of parties, they may be united in their desire for an unlimited tenure, which exists nowhere in the world. The debate in the Rajya Sabha, which is a matter of record, and the current issue, have demonstrated support from all MPs, and all parties for capping the tenure of sports officials to a reasonable level. My support lies in the perceptions of parliamentarians, the people and the press, (and I want to) to improve management and performance in sports.

they do so implies that the gains are either political—like for Abhay Singh Chautala to support Haryana's boxers and build up his popularity in his state or, as IOA's obsession for mega events shows, financial.

The federations first said the timing of the government regulation would affect morale around the Commonwealth Games preparations. When that could not be sustained, came the

ultimate threat—Olympic expulsion. Like what had happened to Kuwait in January. Beijing gold medallist Abhinav Bindra asks, "It is not as if the Government is taking over sports, are they?" Kuwait was suspended from the Olympics because its Olympic committee was unable to amend a law allowing government involvement in sports federations elections.

The law in India is, however, taking

its own very correct and rigorous course. In Delhi High Court the goalposts have not so much shifted as it has been stretched due to the PIL from a young Delhi lawyer, who may well turn out to be the firestarter that Indian sports administration deserves.

In 2000, Rahul Mehra asked questions about the functioning of the Board of Control for Cricket in India (BCCI) in a PIL. Four years later the Delhi